

Risk Review

City Contract No. _____

Approved as to
form only

D. White

Date: *June 27, 2013*

By: *BT*
Date: *6-27-13*

City of Cheyenne Owned Ice and Events Center
1530 West Lincolnway
Cheyenne, Wyoming 82001

**CITY OF CHEYENNE PARKS AND RECREATION DEPARTMENT
ICE AND EVENTS CENTER USER AGREEMENT**

This Agreement ("Agreement"), dated _____, 2013, is by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Cheyenne Stampede Junior "A" Hockey LLC, a for profit organization, having its principal office at 3303 Forest Drive, Cheyenne, Wyoming 82001 ("Cheyenne Stampede"). This Agreement pertains to the City of Cheyenne Owned Ice and Events Center, located at 1530 West Lincolnway, Cheyenne, Wyoming 82001 ("Events Center"). The Events Center is administered by the City of Cheyenne Parks and Recreation Department.

WHEREAS, the City owns, manages and operates the Events Center and has the power and authority to lease the use thereof to others for the purpose of conducting certain events and other activities; and

WHEREAS, Cheyenne Stampede desires to use certain portions of the Events Center, as indicated on Appendix A to this Agreement, and the City desires to license the use thereof to Cheyenne Stampede for the purpose of holding and presenting Junior "A" Hockey practices and games (collectively referred to herein as the "Season"), all subject to the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the covenants and agreements contained herein, and intending to be legally bound hereby, the parties agree as follows:

1. **Premises.** City hereby grants to Cheyenne Stampede permission to use those portions of the Events Center set forth on Appendix A, attached hereto and incorporated herein (the "Premises"), upon the terms and conditions contained herein. Only Cheyenne Stampede members, prospective members, designated representatives and invitees are permitted by this Agreement to use the Premises.

2. **Term.** The period of Cheyenne Stampede's use of the Premises shall be from August 16, 2013, through March 23, 2014 (the "Term"). Before the commencement of the term of this Agreement as set forth in Appendix A, the City shall make the Events Center available to Cheyenne Stampede, upon the payment of separate and additional charges, for (a) preparation for the Season and delivery, move-in and set-up of Cheyenne Stampede property and equipment; and (b) load-out immediately following the conclusion of the Season, ending no later than the time set forth on Appendix A. Unless expressly stated herein, or otherwise agreed to in writing, all deliveries and items required for presentation of the Season shall be provided at the sole cost and expense of Cheyenne Stampede.

3. Purpose. Cheyenne Stampede shall be permitted to use the Premises solely for the purpose set forth in Appendix A. Cheyenne Stampede is not permitted to use the Premises for other purposes.

4. Fees.

a. In consideration for City granting Cheyenne Stampede permission to use the Premises, Cheyenne Stampede shall pay City user fees according to the following rate schedule:

Prime Time:

Monday - Friday (4:00 pm - 10:00 pm) \$150.00/hr

Saturday - Sunday (7:00 am - 10:00 pm) \$150.00/hr

Non Prime Time:

Monday- Sunday (10:00 pm - 7:00 am) \$115.00/hr

Monday - Friday (7:00 am - 4:00 pm) \$115.00/hr

Cheyenne Stampede will not be charged for ice resurfacing. The City will resurface ice prior to each Cheyenne Stampede practice, between each period in all junior hockey games and prior to each hockey game immediately after team warm ups.

b. The back storage room at the Events Center will be made available, free of charge, for the 2013-2014 season, to be used by Cheyenne Stampede as a team locker room. No fixtures, furnishings, equipment, or other modifications in the back storage room shall be made without the express written approval of the City. Cheyenne Stampede shall have the right to remove its moveable personal property from the back storage room at any time, provided, however, that any and all moveable personal property and all fixtures, furnishings and equipment which remain in the back storage room after the Term of this Agreement may be thrown away, sold or otherwise disposed of by the City. Cheyenne Stampede will be granted after hours access to the back storage room through the back door located on the north side of the Events Center. The City will retain one copy of the key to the back storage room to be used for emergency purposes use only. The City assumes no liability for the loss or damage of personal property of Cheyenne Stampede stored in the back storage room. Cheyenne Stampede will not use or store any flammable or hazardous material on the premises of the Events Center without the express written consent of the City. Cheyenne Stampede will strictly obey all federal, state and local laws relating to the use or storage of flammable or hazardous materials.

c. Cheyenne Stampede will be allowed to sell malt beverages in an area to be designated by the City, with 100% of the profits going to Cheyenne Stampede or a Not-For-Profit agency designated by Cheyenne Stampede. Malt beverages may be possessed, sold, and consumed at the Events Center only pursuant to a malt beverage permit issued through the City Clerk's Office (2101 O'Neil Avenue, Municipal Building). Prior to the sale, possession or consumption of malt beverages on the premises of the Events Center, Cheyenne Stampede will provide Liquor Liability insurance in such amounts as shall be approved by the City. The City may also require that Cheyenne Stampede provide on-site

security, through law enforcement personnel or otherwise, during events involving the sale, possession, or consumption of malt beverages at the Events Center.

d. The City will allow Cheyenne Stampede to display advertising in the interior portions of the Events Center as stated in City Contract No. 5690, or as provided in valid amendments thereto.

e. Cheyenne Stampede shall be liable for the cost of repair or replacement of any City property that is damaged or destroyed as a result of Cheyenne Stampede's use of the Events Center, normal wear and tear excepted. Cheyenne Stampede expressly assumes liability for any loss or damage to City property which is caused by its principals, officers, employees, agents, representatives, volunteers or players. Cheyenne Stampede expressly assumes liability for any loss or damage to City property caused by persons or entities who have been invited by Cheyenne Stampede to be present at the Events Center for purposes permitted under this Agreement, and for any such loss or damage caused by their officers, employees, agents, representatives, volunteers or players. In addition, any person who causes any loss, injury or damage to the Events Center or to any other property or facilities of the City may be banned from the Events Center by the City Parks and Recreation Director, in his or her sole discretion, after consultation with Cheyenne Stampede.

f. Cheyenne Stampede will be billed monthly for ice time and other user fees. In the event that Cheyenne Stampede fails to pay user fees required by this Agreement on or before the specified payment dates, the City reserves the right to impose finance charges equal to 1.5 % per month (18% per annum) on such unpaid amounts. In the event of default of payment pursuant to Section 18 below, the City reserves the right to terminate this Agreement. Costs of collection and reasonable attorneys' fees incurred in connection therewith shall be paid by Cheyenne Stampede.

g. Cheyenne Stampede shall be allowed to place an 8' x 12' temporary storage structure in an area to be designated by the City on the east side of the Events Center for storage. The City assumes no liability for theft, damage or loss of either the structure or its contents. In the event the storage structure is vandalized or otherwise damaged, Cheyenne Stampede will repair the damage or remove the structure in a timely manner.

h. Cheyenne Stampede will be allowed to use the former Capitals Youth Hockey Association's retail room as office space for coaches from August 16, 2013, through March 23, 2014, for a cost of \$100.00 per month. All office furnishings placed in this space by Cheyenne Stampede must be removed within thirty (30) days following the termination of this Agreement or following the termination of future similar agreements.

5. City's Responsibilities. The City will provide the following during Cheyenne Stampede periods of use of the Premises.

a. Use of the Premises by Cheyenne Stampede.

b. Electricity and other utilities for lighting, heating, and air conditioning, as customarily provided by City for ice skating events at the Events Center.

c. Cleaning and janitorial services, with the exception of the team locker room (back storage room). Cleaning and janitorial services for the team locker room will be performed only if requested by Cheyenne Stampede and only in the presence of a coach, general manager, or other authorized representative.

d. City staff customarily provided for ice skating events at the Events Center.

e. One Premises supervisor who shall be in attendance during any Event.

f. Wireless internet and router, provided, however, that the City does not guarantee any level of service and shall not be responsible for any loss or discontinuation of service.

g. Ice-resurfacing as described in Section 4(a) of this Agreement. The City will charge \$50.00 for additional re-surfacing requested by Cheyenne Stampede. The City will charge \$25.00 for snow removal requested by Cheyenne Stampede.

h. The City will sell tickets to individual games as well as season ticket packages. The City will retain a \$1.00/ticket fee for each ticket sold by cash or check. The City will retain a \$1.25/ticket fee for each ticket sold by credit card. This fee will cover the City's costs for use of an independent ticketing agency and any profit will remain the property of the City. Each Monday, for the duration of the Event, the Events Center staff will prepare, on behalf of Cheyenne Stampede, an invoice for all tickets sold during the preceding week. The invoice will become a valid and binding obligation when Cheyenne Stampede signs the invoice.

6. Cheyenne Stampede Responsibilities. Cheyenne Stampede agrees to comply with the following terms and conditions during its use of the Premises.

a. Except as permitted under a malt beverage permit issued pursuant to Section 4(c), no alcoholic or malt beverages or glass containers shall be brought on the Premises by players, coaches or staff.

b. No outside food or beverages may be consumed by business invitees of Cheyenne Stampede in the absence of express written consent of the City's Director of Leisure Services or the City's Recreation Coordinator for Ice and Events. All donated items must be pre-approved by the Recreation Coordinator Ice and Events two (2) weeks (14 days) prior to donation.

c. All hockey participants shall wear a helmet and necessary protective equipment as required by AAU Insurance.

d. Cheyenne Stampede shall not permit any person, staff, players or coaches on the ice while the Ice Surfacing machine is in operation.

e. Cheyenne Stampede shall strictly adhere to the dates and the starting and finishing times of its permitted periods of use as set forth in the ice schedule. Any practices

or games that run past scheduled times will be billed at the applicable ice rate. In addition, Cheyenne Stampede must comply with the scheduled ice resurfacing and does not have the option to forego the process. The scheduled resurfacing times will be posted online at the Events Center's website.

f. Cheyenne Stampede shall comply with all rules and regulations at the Events Center and with the directions of City personnel responsible for the operation or security of the Events Center.

g. Cheyenne Stampede shall provide security personnel if requested by the City pursuant to Section 11 of this Agreement.

h. Cheyenne Stampede agrees not to do any act or allow any act to be done during the Term of this Agreement which shall mar, deface or injure any part of the Events Center. Upon expiration of the Term, Cheyenne Stampede shall surrender possession of the Premises to the City in as good condition and repair as at the beginning of the Term, excepting normal wear and tear.

i. Cheyenne Stampede shall use the Events Center and Premises only in a safe and careful manner.

j. Cheyenne Stampede shall notify the City in writing of the cancellation of any practice or game at least seventy-two (72) hours prior to the date of the practice or game. In the event Cheyenne Stampede fails to provide at least seventy-two (72) hours notice of the cancellation of any game or practice, Cheyenne Stampede will remain liable for the user fee for the practice or game time, provided, however, no user fee for a game shall be charged in the event the game is cancelled because an opposing team cannot reach the Events Center due to inclement weather or other acts of God. In the event the Events Center is closed by the City due to inclement weather, road closures, or other unusual events, the City may, in its discretion, refund user fees which were paid in advance subject to such terms and conditions as may be imposed by the City. The City retains the right, in its sole discretion, to close the Events Center after consultation with Cheyenne Stampede.

k. The birthday party room located in the lobby is available for Cheyenne Stampede's use with a charge of \$25.00 per hour at the discretion of the City. All use by Cheyenne Stampede of the aforementioned room must be scheduled prior to its use through the City's Recreation Coordinator for Ice and Events. Any scheduled use will be charged the hourly rate.

l. This Agreement does not authorize Cheyenne Stampede to have exclusive use of the entire Events Center, even during games. Other areas of the Events Center, such as the lobby, arcade, and birthday party room will remain open for regular public use. Subject to availability, the Cheyenne Stampede may rent the entire Events Center at regular rental rates if exclusive use of the entire facility is desired. For game use, the Cheyenne Stampede will have exclusive use of inner arena areas including ice surface, spectator stands, and team locker rooms.

m. Cheyenne Stampede will pay the following charges for use of the City's photocopier: \$0.10 per black and white copy and \$0.30 per color copy. Cheyenne Stampede will be invoiced on a monthly basis.

n. Cheyenne Stampede may sell approved merchandise in designated areas only. Cheyenne Stampede will retain 100% of merchandise sales.

7. Concessions. The City specifically reserves to itself and its usual Events Center concessionaires the exclusive right to provide or sell, and retain the proceeds from the sale, of all food and beverages and all other concessions, other than malt beverages, as provided in Section 4(c) of this Agreement. All concessions of food and beverage provided to Cheyenne Stampede or its guests, invitees, or other Event attendees, shall be at an additional charge.

8. Indemnity. In entering into the Agreement, Cheyenne Stampede agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against any and all claims, demands, causes of action, costs, injuries, and liabilities, including attorney's fees, arising during or resulting from the Cheyenne Stampede's activities under this Agreement and Cheyenne Stampede shall carry insurance as set forth in this Agreement. Cheyenne Stampede acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City.

9. Governmental Immunity. The City and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the City fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

10. General Conditions; Insurance Requirements.

a. Cheyenne Stampede shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below.

b. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this Agreement.

c. Type of Coverage	Minimum Limits
Commercial General Liability (Including Products and Completed Operations;	\$1,000,000 per Occurrence \$2,000,000 Aggregate

Workers' Compensation	Statutory
OR	
Employer's Liability-- Policy Limits	\$500,000 Each Accident
	\$500,000 Each Disease
	\$500,000 Disease/Each Employee

d. It is understood and agreed that these policies, except for worker's compensation or employer's liability, are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of this Agreement and for so long as Cheyenne Stampede is conducting operations under this Agreement. It shall be an affirmative obligation upon Cheyenne Stampede to immediately notify in writing the City risk manager, city clerk, and city attorney of any facts, circumstances, or occurrences that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

e. The City of Cheyenne shall be named as an additional insured on Cheyenne Stampede's insurance policies, except for workers' compensation and employer's liability policies, and Cheyenne Stampede shall provide a copy of the endorsements providing this coverage.

f. The City has the right to reject a certificate of insurance if a Cheyenne Stampede insurer is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

g. The City has the right to review the insurance certificates of any or all subcontractors used by Cheyenne Stampede. Further, the City requires that any subcontractor hired or employed by Cheyenne Stampede to perform services pursuant to this Agreement shall provide insurance at least equivalent to that required of Cheyenne Stampede.

h. The City has the right to increase the required minimum limit of liability on any contract project as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to:

- i. handling of hazardous materials; and
- ii. activities involving large congregations of people.

i. The City shall have the right to consult with Cheyenne Stampede's insurance carriers and agents for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Cheyenne Stampede's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- i. exclusions;
- ii. deductibles; and
- iii. claims in progress which could significantly reduce the annual aggregate limit.

11. Security.

a. If requested by the City, Cheyenne Stampede shall provide and pay for its own security personnel in sufficient numbers to police Cheyenne Stampede's use of the Premises and any spectator, guest or invitee attending Cheyenne Stampede's Event. Any security personnel to be provided by Cheyenne Stampede must be licensed in accordance with the City Code of the City of Cheyenne and approved in writing by the City's Chief of Police, or authorized designee, no later than ten (10) days in advance of Cheyenne Stampede's use of the Premises. In the event the City requests Cheyenne Stampede to provide such security and Cheyenne Stampede fails to obtain City approval of security personnel in a timely fashion or fails to provide adequate security, as determined by the City in its sole discretion, the City shall have the right to provide security personnel at the expense of Cheyenne Stampede or, alternatively, the City shall have the right to terminate this Agreement.

b. If, in the sole judgment of the City, Cheyenne Stampede's use of the Premises at any time poses a danger to the safety of any other user of the Premises or City employees, security personnel, or presents unreasonable risks of harm or damage to City property or to the property or persons of other lawful users of the Events Center, the City reserves the right to eject from the Premises any person making use of the Premises through or in association with Cheyenne Stampede and any participant, attendee, or spectator who is present at the Events Center during any event sponsored or conducted by Cheyenne Stampede, to restrict Cheyenne Stampede's activities on the Premises, to cancel any period of Cheyenne Stampede's use of the Premises and to terminate this Agreement in its entirety. Any such action by the City shall not be deemed to be a breach of this Agreement and the City shall not be liable for damages for such an action. The City's reservation of rights in this section shall not in any way relieve or limit Cheyenne Stampede's duty to indemnify the City pursuant to this Agreement.

12. Responsibility for Safety. Cheyenne Stampede shall be responsible for all crowd control while in possession of the Premises.

13. Assumption of Risk. Cheyenne Stampede, and all persons using the Events Center and Premises hereunder for any purpose, and all invitees of Cheyenne Stampede, assume all risk and danger incidental to the use of the Events Center and Premises for hockey, other sports, and other recreational opportunities. Cheyenne Stampede, and its principals, coaches, parents, players, and volunteers agree and acknowledge that hockey and other recreational sports and opportunities present inherent risks, including personal injury, paralysis, and death, including injury, paralysis, and death resulting from pucks, hockey sticks and other players. It is mutually understood and agreed that the City reserves all defenses and immunities available under the Recreation Safety Act,

Wyo. Stat. §§ 1-1-121 through 1-1-123.

14. Control of Premises. The City shall have the right at all times to enter upon and have access to the Events Center and Premises, except as provided for the team locker room. By entering into this Agreement, the City reserves the right to control the management of the Events Center and to enforce all necessary rules and regulations. The decision of the City as to the number of persons that can safely and freely move about in the Premises shall be final.

15. Reservation of Rights. The City reserves all rights not expressly granted to Cheyenne Stampede hereunder, and may, during the Term, use any or all portions of the Premises not specifically licensed to Cheyenne Stampede hereunder. The City reserves the right to eject from the Events Center and/or Premises any person for any reason which the City, in its sole discretion, deems sufficient.

16. Licenses. The City shall secure in advance, prior to commencement of the Term, all licenses and permits that may be required by or in connection with use of the Premises or the Event, including without limitation any licenses or permits required by any performing arts societies, such as ASCAP, BMI and/or SESAC.

17. Promotional Activity. Cheyenne Stampede agrees not to conduct any promotional activity or advertising regarding the Season to be conducted at the Events Center without the prior consent of the City. If promotion or advertising of the Season is permitted by the City, all advertising and promotion of the Event shall be the responsibility of Cheyenne Stampede, at its sole cost.

18. Termination. In the event Cheyenne Stampede at any time fails to comply with any of the terms and conditions of this Agreement, and fails to cure such non-compliance within five (5) days of its receipt of written notice describing such noncompliance, the City may terminate this Agreement, retain as damages any fees paid by Cheyenne Stampede under this Agreement, and exercise such other rights as provided by law.

19. Assignment. Cheyenne Stampede may not assign its right to use the Premises to any other person, group or organization without the express written consent of the City.

20. Independent Contractors. The relationship between the City and Cheyenne Stampede is that of independent contractors and not agents or employees. Under no circumstances shall this Agreement be considered a contract of partnership or joint venture.

21. Force Majeure. In the event the City is unable to perform any of the terms or conditions of this Agreement due to events or causes beyond the City's control, such as destruction or damage to the Events Center or Premises as a result of fire or act of God, riot, labor, strike, national or local emergency, the City shall not be deemed to be in breach of this Agreement or liable to Cheyenne Stampede for damages.

22. Applicable Law. This Agreement shall be construed and enforced in accordance with the laws of the State of Wyoming and may be enforced in any court of competent jurisdiction in the State of Wyoming.

23. Entire Agreement. This Agreement consisting of thirteen (13) pages, including Appendix A, constitutes the entire Agreement between the City and Cheyenne Stampede and cannot be amended except in writing signed by both parties. The City shall not be bound by any agreements, conditions, representations or warranties relating to the Premises or Cheyenne Stampede's use thereof, oral or written, express or implied, not contained in this Agreement.

IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

CHEYENNE STAMPEDE JUNIOR "A HOCKEY LLC

Date

By: _____
(signature)

(printed name)

Title: _____

CITY OF CHEYENNE

Date

By: _____
Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk